

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
FRANCES PERSAUD, HEATHCLIFF PERSAUD,
VANESSA ANDRADE, HAKEEM PERSAUD, AND
KNEANDREA BEDEAU,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, CAPTAIN FILASTIN SROUR,
DETECTIVE ANDREW NASH, AND "JOHN DOE"
POLICE OFFICERS #1 THROUGH #3 (first name being
fictitious), first name presently unknown, persons more
accurately described in the complaint herein,
Defendants.

Index #:

COMPLAINT AND
JURY DEMAND

Venue is based on the
location of the acts
giving rise to this action

-----X
Plaintiffs, by their attorneys, THOMPSON LAW, P.C., as and for a cause of action alleges upon
information and belief as follows:

NATURE OF THE ACTION

1. This civil rights action arises from the defendants' police officers' unlawful and improper arrest, imprisonment, and confinement of all named plaintiffs, physical assault, abuse, battery, and harassment of all named plaintiffs, and use of intimidation and excessive force upon plaintiffs at approximately 8:30 p.m. on or about July 4, 2018.

JURISDICTION

2. Plaintiffs seek declaratory relief pursuant to 28 U.S.C § 2201, declaratory and punitive damages for violation of plaintiff's civil rights pursuant to the New York State Constitution, the laws of the State of New York, and 42 U.S.C. §§§§ 1981, 1984, 1985, and 1986, an award of costs, disbursements, and attorney fees under 42 U.S.C. §1988.

3. Plaintiffs also seek declaratory and punitive damages under state law tort claims. The action is dictated upon violations of plaintiffs' civil rights protected under the New York State Constitution, and the United States Constitution inclusive of the Fourth, Fifth, and Fourteenth

Amendments to the United States Constitution actionable pursuant to 42 U.S.C. §§§§§ 1981, 1982, 1984, 1985, and 1986.

VENUE

4. That venue for this action is placed in the County of the Bronx because that is the County of occurrence of the incidents alleged herein pursuant to CPLR §504(3).

NOTICE OF CLAIM

5. That on October 2, 2018, all named plaintiffs filed a Notice of Claim with the defendant, City of New York.

6. The Notice of Claim was delivered to the person designated by law as a person to whom such claims may be presented and served.

7. The Notice of Claim was in writing, sworn to by or on behalf of all named plaintiffs, and contains the names and post office addresses of all named plaintiffs and plaintiffs' attorney, the nature of the claim, the time when, the place where, and the manner by which the claim arose, and the damages and injuries claimed to have been sustained.

8. That on or about November 2018, all named plaintiffs presented before the defendant City of New York and gave testimony pursuant to General Municipal Law §50-H about the acts and the occurrence which gave rise to this action.

9. The defendant, City of New York, never requested a physical exam of all named plaintiffs.

10. Defendant, City of New York has failed and refused to pay and or adjust the claim within the statutory period of time.

PROCEDURAL HISTORY

11. Plaintiffs initially commenced this case against defendants in the United States District Court Southern District of New York, Case 1:20-cv-02057 (PAC).

12. By Order of Honorable Judge Paul A. Crotty, dated March 15, 2022, the parties agreed to withdraw the aforementioned case. The parties also agreed that the case would be reinitiated in the Supreme Court of New York, County of New York.

PARTIES

13. At all times hereinafter mentioned the plaintiff, FRANCES PERSAUD, is a resident of the County of New York State of New York.

14. At all times herein mentioned, the plaintiff, HEATHCLIFF PERSAUD is a resident of the County of New York State of New York.

15. At all times hereinafter mentioned, the plaintiff, VANESSA ANDRADE, is a resident of the County of New York State of New York.

16. At all times hereinafter mentioned, the plaintiff, HAKEEM PERSAUD, is a resident of the County of New York State, of New York.

17. At all times hereinafter mentioned, the plaintiff, KNEANDREA BEDEAU, is a resident of the County of New York State, of New York.

18. That at all times as stated herein, upon information and belief, defendant City of New York, was and still is a Municipal Corporation organized and existing on the and by virtue of the laws of the City and State of New York.

19. Defendant, the City of New York, has established and maintains a Police Department which is an agency of the defendant, City of New York.

20. That all times stated herein, upon information and belief, the defendant the City of New York, employed the individual defendant Police Officers “JOHN DOE” # 1-3 (hereinafter “JOHN DOE” POLICE OFFICERS 1 - 3, or P.O. “JOHN DOE” 1-3), whose first names are unknown to the plaintiffs.

21. That all times stated herein, upon information and belief, the defendant the City of New York, employed the individual defendant Police Officer Andrew Nash (Shield No. 5497) who is also a Detective.

22. That all times stated herein, upon information and belief, the defendant the City of New York, employed the individual defendant NYPD Captain Filastin Srour.

23. That all times stated herein, upon information and belief, Detective Andrew Nash, Captain Filastin Srour, and Police Officers “JOHN DOE” 1- 3 were duly appointed as active police officers of the City of New York.

24. That at all times stated herein, upon information and belief, the individual defendants were acting under the color of state law.

25. That at all times stated herein, upon information and belief, the individual defendants were acting both in their individual and official capacities as employees of the defendant the City of New York.

26. Notwithstanding the unconstitutional and unlawful conduct, the actions of the individual defendants were taken in the course of their duties and were incidental to their otherwise lawful functions as agents, servants, and employees of the City of New York.

FACTS UNDERLYING PLAINTIFF’S CLAIM FOR RELIEF

27. That at approximately 8:30 PM on July 4, 2018, all named plaintiffs were legally and lawfully in front of 2201 5th Avenue, in the County of New York, City, and State of New York.

28. That at all times stated herein all named plaintiffs had not committed or attempted to commit any crime.

29. That at all times stated herein, all named plaintiffs were not sought by the police for any reason.

30. That at all times stated herein and the upon information and belief, DETECTIVE ANDREW NASH, CAPTAIN FILASTIN SROUR, and “JOHN DOE” POLICE OFFICERS 1-3, approached one of the plaintiffs, HAKEEM PERSAUD, without any cause.

31. That at all times stated herein plaintiff FRANCES PERSAUD, approached DETECTIVE ANDREW NASH, CAPTAIN FILASTIN SROUR, and “JOHN DOE” P.O. 1-3, and inquired as to why said individual defendants were speaking to her brother, Plaintiff HAKEEM PERSAUD.

32. That at all times stated herein, CAPTAIN FILASTIN SROUR, with an aggressive tone and using profanity screamed at plaintiff, FRANCES PERSAUD, and in a violent and aggressive manner punched plaintiff FRANCES PERSAUD in the chest.

33. That at all times stated herein, DETECTIVE ANDREW NASH, then struck plaintiff FRANCES PERSAUD, on her head with his walkie-talkie, and both plaintiffs including three other family members, who were not involved in the matter, were falsely arrested.

34. As a result, defendants wrongfully assaulted all named plaintiffs several times as well as seized plaintiffs in an excessive manner about their persons, causing them physical pain and mental suffering. At no time did the defendants have legal cause to grab, seize, assault or touch the plaintiffs, nor did the plaintiffs consent to the illegal touching, assault, or seizure. Nor were said actions privileged by law.

35. That at all times stated herein, the defendants jointly and severally in their capacity as police officers committed an assault and battery upon plaintiffs.

36. The arrest was initiated and continued without probable cause to believe any crime has been committed by the named plaintiffs.

37. That at all times stated herein, the behavior of defendants was unjust and excessive as all named plaintiffs did not commit any act which would provoke such a response from defendants.

38. That all named plaintiffs had knowledge of their confinement.

39. That all named plaintiffs did not consent to the confinement.

40. That all named plaintiffs were prevented from leaving the confinement.

41. That during this confinement, all named plaintiffs were fingerprinted, searched, and photographed by, and at the direction of, the defendants.

42. That at all times stated herein, all named plaintiffs were later transported to central booking by the individual defendants as stated herein.

43. That at all times stated herein all named plaintiffs were arraigned, released and all charges were dropped.

44. Plaintiffs sustained great fear, emotional harm, severe psychological distress, anxiety, disgrace, embarrassment, and loss of self-esteem as a result of the aforesaid arrest, imprisonment, confinement, assault, intimidation, and abusive behavior perpetrated upon all named plaintiffs by defendants as a result of the aforesaid referenced events including serious injuries which required medical treatment and caused or made plaintiffs incur the cost for medical care.

**FIRST CAUSE OF ACTION ON BEHALF OF PLAINTIFFS FOR VIOLATION OF
PLAINTIFFS' RIGHT TO BE FREE FROM UNREASONABLE SEARCHES AND
SEIZURES, FOR VIOLATIONS OF PLAINTIFFS' EQUAL PROTECTION AND DUE
PROCESS RIGHTS UNDER ARTICLE I, SECTIONS 1, 5, 6, 11, 12 OF THE NEW
YORK STATE CONSTITUTION, AND THE FOURTH, FIFTH, AND FOURTEENTH
AMENDMENTS TO THE UNITED STATES CONSTITUTION Predicated
UPON FALSE ARRESTS, IMPRISONMENT, AND CONFINEMENT**

45. All named plaintiffs repeat, reiterate, and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as it sets forth more fully herein.

46. As a result of the afford described actions, including the arrest, imprisonment, and confinement of all named plaintiffs without probable cause, the defendant police officers, DETECTIVE ANDREW NASH, CAPTAIN FILASTIN SROUR, and “JOHN DOE” POLICE OFFICERS 1-3, individually deprived plaintiffs, of the rights, privilege, and immunities secured by Article I, Section 1 of The New York State Constitution, the laws and Constitution of the United States, including the 14th Amendment to the U.S. Constitution.

47. As a result of the afore-described actions, these defendants individually deprived all named plaintiffs of the right to be free from unreasonable searches and seizures secured by Article I, Section 12 of the New York State Constitution, the laws and Constitution of the United States, including the Fourth and Fourteenth Amendments.

48. As a result of the aforementioned described actions, these defendants individually deprived all named plaintiffs of the right to liberty without due process of law secured by Article I, Section 6 of the New York State Constitution, the laws and Constitution of the United States, including the Fifth and Fourteenth Amendments.

49. As a result of the afore-described actions, including the patently offensive physical conduct and threatening remarks made by defendants during the aforementioned arrest, confinement, and assault of all named plaintiffs, these defendants individually deprived all named plaintiffs of equal protection under the law secured by Article I, Section 11 of the New York State Constitution, the laws and Constitution of the United States, including the Fourteenth Amendment.

50. The afore-described constitutional violations are all actionable under and pursuant to the Constitution of the State of New York, laws of the City and State of New York, and 42 U.S.C. §§§§§§ 1980, 1981, 1982, 1984, 1985, and 1986.

51. The afore-described acts of these defendants were intentional, willful, malicious, and performed with reckless disregard for and deliberate indifference to the rights of all named plaintiffs herein.

52. As a result of the foregoing, defendants, individually and or collectively, by and through their agents, servants, and employees, placed all named plaintiffs in apprehension of imminent harmful and offensive contact, thereby committing an assault upon all named plaintiffs.

53. As a result of the foregoing, all named plaintiffs have suffered damages.

**SECOND CAUSE OF ACTION ON BEHALF OF
ALL NAMED PLAINTIFFS FOR BATTERY**

54. All named plaintiffs repeat, reiterate and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as set forth more fully herein.

55. As a result of the foregoing, all the named plaintiffs were, without just cause or provocation, vigorously, maliciously, intentionally battered, and emotionally and psychologically abused, causing serious psychological and emotional harm to all named plaintiffs.

56. That at the time and place aforesaid, the defendants, individually, and or collectively, by and through their agents, servants, and or employees, without just cause or provocation, vigorously, maliciously, recklessly, and or intentionally, battered and physically abused all named plaintiffs causing serious injury to all named plaintiffs.

57. That the occurrence and injuries sustained by all named plaintiffs were caused solely by the malicious, reckless, and or intentional conduct of the defendants, individually and or collectively, by and through their agents, servants, and or employees, without any provocation on the part of all named plaintiffs contributing thereto.

58. As a result of the foregoing, all named plaintiffs have suffered damages.

**THIRD CAUSE OF ACTION ON BEHALF OF ALL NAMED
PLAINTIFFS FOR FALSE ARREST AND IMPRISONMENT**

59. All named plaintiffs repeat, reiterate and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as set forth more fully herein.

60. As a result of the foregoing, all named plaintiffs were, without just cause or provocation, maliciously, recklessly, and or intentionally arrested and imprisoned without probable cause resulting in unlawful confinement, deprivation of liberty, and other serious emotional injuries to all named plaintiffs.

61. That the occurrence and injuries sustained by all named plaintiffs were caused solely by the malicious, reckless, and or intentional conduct of the defendants, individually and or collectively, by and through their agents, servants, and or employees, without any provocation on the part of the named plaintiffs contributing thereto.

62. As a result of the foregoing, all the named plaintiffs have suffered damages.

**FOURTH CAUSE OF ACTION ON BEHALF OF ALL NAMED PLAINTIFFS FOR
NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL HARM**

63. All named plaintiffs repeat, reiterate and allege each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

64. As a result of the foregoing, defendants, individually and or collectively, by and through their agents, servants, and or employees, intentionally, wantonly, recklessly, carelessly, and or negligently, engaged in extreme and outrageous conduct, measured by the reasonable bounds of decency tolerated by decent society thereby inflicting mental and emotional distress upon all named plaintiffs.

65. As a result of the foregoing, all named plaintiffs have suffered damages.

**FIFTH CAUSE OF ACTION ON BEHALF OF ALL NAMED PLAINTIFFS FOR
NEGLIGENT SUPERVISION AND RETENTION**

66. All named plaintiffs repeat, reiterate and reallege each and every allegation contained in the proceeding paragraphs with the same force and effect as it is set forth fully herein.

67. At all times hereinafter mentioned, the defendant, City of New York, by its agents, servants, and or employees, carelessly, negligently, and or recklessly hired applicants for the position of police officers.

68. That at all times hereinafter mentioned, the defendant, City of New York, by its agents, servants, and or employees carelessly, negligently, and recklessly trained applicants for the position of police officers.

69. That at all times hereinafter mentioned, the defendant, City of New York, by its agents, servants, and or employees carelessly, negligently, and recklessly supervised, controlled, managed, maintained, and inspected the activities of its police officers.

70. That at all times hereinafter mentioned, the defendant, City New York, by its agents, servants, and or employees caused, permitted, and allowed its police officers to act in an illegal, unprofessional, negligent, and or deliberate manner in carrying out their official duties and or responsibilities.

71. That at all times hereinafter mentioned, the defendant, City of New York, by its agents, servants, and or employees carelessly, negligently, and recklessly retained its police officers who were unfit for the position, who acted in an illegal, unprofessional, negligent and or unlawful manner in carrying out their official duties and or responsibilities prior to the date of the incidents complained of herein.

72. That at the time and place aforesaid, the defendant City in New York, by its agents, servant, and or employees, without just cause of provocation, maliciously, recklessly, and or intentionally assaulted, psychologically abused, attacked, threatened, intimidated, falsely arrested and imprisoned, all named plaintiffs herein causing serious personal injury to plaintiffs.

73. At the aforementioned occurrence, an injury sustained by all named plaintiffs, more specifically, FRANCES PERSAUD, was caused solely by, and as a result of. the malicious, reckless,

negligent, and or intentional conduct, of the defendant, City of New York, its agents, servants, and or employees as set forth above, without any provocation on the part of the plaintiffs contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained its police officers and Police Department.

74. As a result of the foregoing plaintiffs have suffered damages.

SIXTH CAUSE OF ACTION
MONELL CLAIM

75. All named plaintiffs repeat, reiterate and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as set forth more fully herein.

76. At all relevant times herein, Defendant the City of New York, acting through its NYPD, developed, implemented, enforced, encouraged, and sanctioned de facto policies, practices, and/or customs exhibiting deliberate indifference to plaintiffs' constitutional rights which caused the herein described violations of such rights.

77. Despite knowledge of such unlawful de facto policies, practices, and/or customs, these supervisory and policy-making officers and officials of the NYPD and the City of New York, have not taken steps to terminate these policies, practices, and/or customs, do not discipline individuals who engage in such policies, practices and/or customs, or otherwise properly train police officers concerning the constitutional and statutory limits on the exercise of their authority, and instead approve and ratify these policies, practices and/or customs through their active encouragement of, deliberate indifference to and/or reckless disregard of the effects of said policies, practices and/or customs or the constitutional rights of persons in New York City.

78. The constitutional abuses and violations by Defendant the City of New York, through the actions of its Police Department and all individual Defendants, were and are directly and proximately caused by policies, practices, and/or customs developed, implemented, enforced, encouraged, and

sanctioned by Defendant New York City, including but not limited to the failure: (a) to adequately supervise and train its officers and agents, including Defendants, thereby failing to adequately discourage further constitutional violations on the part of its police officers; (b) to properly and adequately monitor and discipline its officers, including Defendants; (c) to adequately screen prospective employees in its hiring process; and (d) to adequately and properly investigate citizen complaints of police misconduct, and instead, acts of misconduct were tolerated by New York City of New York.

79. New York City has been on clear notice that its policies and customs have caused and continue to cause chronic constitutional violations. This notice is evidenced by, *inter alia*, (1) the volume of Civil Rights Lawsuits filed against it and its law enforcement officers (which, upon information and belief, the City does not adequately track in order to identify problem precincts and/or problem officers), (2) the number of Notices of Claim ("NOC") filed against the City and its law enforcement officers and the City's inadequate responses to those Notices of Claim, (3) the number of Complaints filed with the Civil Complaint Review Board against the City's law enforcement officers, (4) media and newspaper articles, (5) criminal cases resulting in biased prosecutions and dismissals, and the like. Taken together, these factors demonstrate that a troubling number of NYPD officers unlawfully search and seize New York citizens without probable cause, bring charges against New York citizens with no legal basis, perjure themselves in charging instruments, and through testimony, use excessive force against individuals, and fail to intervene in and report the illegal actions of their fellow officers.

80. Defendants' unlawful actions were done willfully, knowingly, and with the specific intent to deprive plaintiffs of their constitutional rights under the New York State Constitution, New York State Law, and the Fourth and Fourteenth Amendments to the U.S. Constitution.

81. Defendants have acted with deliberate indifference to plaintiffs' constitutional rights under Federal law, Laws of the State of New York, and the Laws of the City of New York. As a direct and

proximate result of the acts as stated herein by each of the Defendants, plaintiffs' constitutional rights have been violated which has caused plaintiffs to suffer physical, mental, and emotional injury and pain, in addition to severe mental anguish, suffering, humiliation, and embarrassment.

82. Plaintiffs have no adequate remedy at law and will suffer serious and irreparable harm to their constitutional rights unless defendants are enjoined from continuing their unlawful policies, practices, and/or customs that have directly and proximately caused such constitutional abuses and other violations.

83. As a direct and proximate result of defendants' unlawful conduct, plaintiffs have sustained the damages hereinbefore alleged.

**SEVENTH CAUSE OF ACTION ON BEHALF
OF ALL NAMED PLAINTIFFS FOR PUNITIVE DAMAGES**

84. That all named plaintiffs repeat, reiterate and reallege each and every allegation contained in the preceding paragraphs with the same force and effect as it is set forth more fully herein.

85. That the aforesaid occurrence and resulting injuries to plaintiffs were due to the willful, wanton, reckless, and or malicious conduct of the individual defendant police officers DETECTIVE ANDREW NASH, CAPTAIN FILASTIN SROUR, and "JOHN DOE" POLICE OFFICERS 1-3.

86. That the aforesaid occurrence and resultant injuries to all named plaintiffs were due to the conduct of these defendants, which reflects an utter indifference to the safety and well-being of others, and specifically the safety and well-being of all named plaintiffs.

87. That the conduct of these individual defendants exhibited a reckless disregard for human life and the safety and well-being of others and more particularly and well-being of others, more particularly, for the life, safety, and well-being of all named plaintiffs.

88. As a result of the foregoing, all named plaintiffs have suffered damages.

WHEREFORE, all named plaintiffs respectfully request that judgment be entered against the defendants on all causes of action in a sum in excess of the threshold of this court and such other and further relief as this court may deem just and proper, together with attorney fees and cost of bringing this case, and punitive damages.

Plaintiffs hereby demand a jury trial on all triable issues.

Dated: New York, New York
April 19, 2022

Yours truly, etc.



THOMPSON LAW. P.C.

By: Itohen Ihaza, Esq.
Attorneys for Plaintiffs
565 Fifth Avenue, Ste. 721
New York, NY 10017
(646) 922-8900

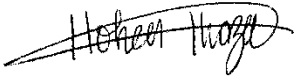
VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

I, the undersigned, an attorney admitted to practice in the courts of New York State, state that I am ITOHEN IHAZA, ESQ., of THOMPSON LAW, P.C., the attorneys of record for the named plaintiffs, in the within Verified Complaint. I have read the foregoing Verified Complaint and know the contents thereof; the same is true to my own knowledge, except to the matters therein stated to be alleged on information and belief, and so to those matters, I believe it to be true. The reason this verification is made by me and not by the named plaintiffs is that Thompson Law, P.C., maintains an office in a County different from that in which plaintiffs currently reside.

The ground of my belief as to all matters not stated upon my own knowledge is as follows: review of the file, investigation, research, and interviews with my client. I affirm, to the best of my knowledge, that the foregoing statements are true, under the penalties of perjury.

Dated: New York, New York
April 19, 2022



ITOHEN IHAZA, ESQ.